

Court No. - 3

Case :- WRIT - C No. - 10523 of 2022

Petitioner :- Dharmveer Singh

Respondent :- Paschimanchal Viddyut Citran And 2 Others

Counsel for Petitioner :- Mata Achal Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Baleshwar Chaturvedi, learned counsel for all the respondents.

2. This writ petition has been filed praying for the following reliefs :

"i. Issue a writ, order or direction in the nature of writ of CERTIORARI for quashing the impugned recovery certificate dated 19.01.2021 sent by the respondent No.2 to the Collector Hapur (Contained in Annexure No. 6 to the Writ Petition).

ii. Issue a writ, order or direction in the nature of writ of MANDAMUS commanding and directing the respondents not to give effect the impugned recovery certificate dated 19.01.2021 sent by the respondent No.2 to the Collector Hapur (Contained in Annexure No. 6 to the Writ Petition)."

3. Learned counsel for the respondents/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within

next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

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